



CRISTY SIM
FITNESS

PERSONAL TRAINING & BODY RECOMPOSITION AGREEMENT

1:1 In-Person Strength & Body Recomposition Training

This Personal Training & Body Recomposition Agreement (the “Agreement”) is entered into between **Cristy Sim LLC**, 5900 Balcones Drive, Suite 100, Austin, TX 78731, USA (the “Company,” “Coach,” or “we”), and the client who signs below (the “Client” or “you”). Formal notices and communications under this Agreement are directed to **cristysim.coaching@gmail.com**.

This Agreement is intended to be used only together with, and is expressly conditioned upon, the Client’s execution of the separate **Informed Consent & Release of Liability** (the “Liability Waiver”), which is incorporated into this Agreement by reference.

1. SERVICES

The Company will provide personalized, primarily in-person strength and body-recomposition personal training to the Client on the following basis:

- Two (2) training sessions per week.
- Eight (8) sessions in total for each month of service.
- Sessions will be conducted primarily in person.
- The training location will be a facility mutually agreed between the Coach and the Client.
- Sessions may be complemented by training programming, general nutrition guidance, progress review, technique feedback, and program-related communication.
- Coaching may be supported through WhatsApp, email, video, or a coaching platform when reasonably necessary.

The service is not exclusively online, remote, or call-based, and nothing in this Agreement promises immediate or continuous availability. Services do not include medical diagnosis, treatment, rehabilitation, physical therapy, psychotherapy, medical nutrition therapy, or emergency care.

2. SESSIONS ARE NOT CUMULATIVE

The Client’s entitlement is structured on a weekly basis. The Client receives two (2) sessions per week, up to an ordinary maximum of eight (8) sessions per month, and:

- Unused sessions do not accumulate.
- Unused sessions cannot be carried over or transferred to later weeks or months.
- Sessions have no cash value.
- Sessions cannot be assigned or transferred to another person.
- The Client’s failure to attend does not extend the service period and does not create credits, except by written agreement of the Company or where the law requires otherwise.

For clarity, the Client may not bank or save sessions in order to use them all at a later time; the weekly structure applies throughout the term.

3. CANCELLATION OR RESCHEDULING OF A SESSION

- Any cancellation or rescheduling request requires a minimum of twelve (12) hours' advance notice.
- Rescheduling is subject to availability.
- Cancellations made with less than twelve (12) hours' notice are treated as used sessions.
- A no-show is treated as a used session.
- Arriving more than ten (10) minutes late may cause the session to be shortened or treated as used, subject to availability.
- If the Coach must cancel a session, the Coach will make reasonable efforts to reschedule or credit it.

4. VACATION AND TRAVEL

- During vacation, travel, or temporary periods when the Client cannot attend in person, the service will continue online where reasonably possible.
- In-person sessions may be converted to virtual sessions, program reviews, remote coaching, or online follow-up.
- Sessions do not accumulate on account of vacation or travel.
- A Client's travel or vacation does not automatically suspend billing and does not create credits.
- Any freeze of the service must be formally requested and approved in accordance with the Service Freeze section below.

5. PRICE AND BILLING

The service begins on ____ / ____ / ____.

The fee for each three-month billing cycle is \$_____ USD, or \$_____ USD per month, as selected below. This fee is charged automatically on a recurring basis as described in this Agreement.

Selected billing option:

- ☐ Paid in full per three-month cycle
- ☐ Paid monthly within the three-month cycle

Agreed payment method:

- ☐ Card on file ☐ Bank transfer / ACH ☐ Other: _____

By signing, the Client authorizes the recurring charges described in this Agreement, agrees to maintain a valid payment method, and is responsible for currency conversion, bank fees, and applicable taxes unless the law provides otherwise.

6. INITIAL COMMITMENT

The initial commitment is three (3) consecutive months, beginning on the service start date. The Client commits to pay the full initial three-month period, subject to non-waivable legal rights and to any exceptions expressly approved in writing by the Company.

7. AUTOMATIC RENEWAL

After the initial three (3) months are completed, this Agreement will automatically renew for additional three-month periods. Billing is not month-to-month. Specifically:

- The Client's payment method will be charged automatically every three (3) months.
- The renewal amount will equal the then-current three-month fee, and the next estimated charge date will fall on the same calendar day on which the prior three-month cycle began.
- The Client expressly authorizes this recurring, quarterly billing until the service is cancelled in accordance with the Service Cancellation section below.

8. CANCELLATION OF THE SERVICE

To prevent the next quarterly renewal charge:

- The Client must send written notice to cristysim.coaching@gmail.com.
- The notice must be received at least seven (7) business days before the next charge date.
- WhatsApp messages, direct messages, and verbal comments do not constitute formal notice.
- A request received late may cause the cancellation to take effect at the end of the next already-billed period, subject to applicable law.
- Cancellation does not generate a proportional refund of a three-month period that has already begun, except in the case of a billing error, termination without cause by the Company, or where the law requires otherwise.

9. FREEZING THE SERVICE

- Any freeze request must be sent in writing to cristysim.coaching@gmail.com.
- It must be sent at least seven (7) business days before the next charge, or before the requested freeze date, as applicable.
- Freezes require written approval and are not granted automatically for vacation or travel.
- For medical reasons, the Company may request reasonable documentation from a licensed health professional.
- An approved freeze may extend the duration of the commitment by a period equal to the freeze.
- Freezes are limited to a maximum of ninety (90) days, unless otherwise approved in writing.

10. EARLY TERMINATION

If the Client cancels before completing the initial three-month commitment without an approved exception, the Client may owe fifty percent (50%) of the unpaid fees that would otherwise become due during the remainder of the initial term, to the extent permitted by law. This amount is intended to compensate the Company for reserved capacity, planning, onboarding, and programming, and is not intended to impose a penalty. It does not duplicate fees already paid and remains subject to applicable law and mandatory consumer rights.

11. FAILED OR DECLINED PAYMENTS

A five (5) calendar-day grace period applies to overdue amounts. Thereafter, the Company may charge a one-time late fee equal to 5% of the overdue installment or the maximum amount permitted by law, whichever is lower. In addition:

- Services, sessions, and access to programming may be suspended immediately if the payment method is declined, revoked, disputed, or cannot be processed.
- Suspension does not eliminate valid payment obligations.
- The Company may resume the service after payment is received.
- Any late fee remains subject to the maximum permitted by applicable law.

12. NUTRITION

Nutrition guidance provided under this Agreement is educational and general only. It does not constitute medical treatment, medical nutrition therapy, or diagnosis. Specifically:

- The Coach does not prescribe medications.
- The Coach does not prescribe supplements. Any comment about supplements is general information and not a medical instruction.
- The Client should consult a physician, registered dietitian, or other licensed professional when appropriate.
- The Client must disclose relevant allergies, intolerances, pregnancy, known or suspected eating disorders, medical conditions, and any recommendations from health professionals.

13. RESULTS AND NO GUARANTEE

No specific result of weight, body composition, strength, appearance, measurements, health, or performance is guaranteed. Results depend on many factors, including but not limited to:

- Consistency, adherence to the program, and effort.

- Nutrition, sleep, recovery, stress, and general health.
- Training history, genetics, medications, injuries, and hormonal factors.
- Lifestyle and the accuracy of the information provided by the Client.

14. SAFETY AND SEPARATE LIABILITY WAIVER

Because training is conducted primarily in person, the Client agrees to the following safety responsibilities:

- Follow the Coach's reasonable instructions.
- Promptly communicate pain, dizziness, injury, pregnancy, fainting, unusual shortness of breath, and any medication or health changes.
- Stop exercising whenever a sign of risk is present.
- Obtain medical clearance when appropriate.
- Use appropriate clothing, footwear, and equipment.
- Comply with all rules of the gym or training facility.

Client acknowledges that participation is also conditioned upon execution of the separate Informed Consent & Release of Liability. That document is incorporated by reference into this Agreement. If there is a direct conflict regarding assumption of physical risks or release of liability, the separate waiver will control to the extent permitted by law.

15. INTELLECTUAL PROPERTY

The Company owns or lawfully uses all programs, templates, explanations, videos, methods, and coaching materials. The Client receives a limited, personal, non-transferable license to use these materials for the Client's own personal use during the program only. Without the Company's prior written permission, the Client may not:

- Copy, share, resell, publish, teach, license, commercially modify, or distribute any programs or materials.
- Upload any materials to public or private artificial-intelligence tools in order to reproduce them.
- Use artificial-intelligence tools to generate copies, commercial summaries, derivative products, or coaching programs substantially based on the content.
- Create training, nutrition, or coaching products derived from the methods, programs, templates, videos, or materials of Cristy Sim LLC.

16. PRIVACY, PHOTOS, AND TESTIMONIALS

The Company may process the information that the Client chooses to provide through WhatsApp, email, a coaching platform, and related channels. Operational health and progress records will normally be retained for up to twelve (12) months after the service ends and then deleted or de-identified, subject to legal, tax, security, and claim-defense requirements. The Company will not sell the Client's sensitive data.

- Public use of photos, videos, testimonials, results, or before-and-after images requires separate written consent.
- Signing this Agreement does not constitute marketing consent.
- This Agreement does not include a media release and does not grant any automatic authorization for promotional use.

17. COMMUNICATION

- WhatsApp is the primary operational communication channel.
- Email is used for formal notices.
- Reasonable program-related messages, technique videos, and questions do not create 24/7 availability.
- The usual maximum response time is 24 to 36 hours, and up to 48 hours during previously announced travel.
- Emergencies must be directed to local emergency services and not to the Coach.

18. TERMINATION BY THE COMPANY

The Company may suspend or terminate the service for nonpayment, fraud, harassment, threats, unsafe conduct, false or misleading information, repeated disregard of safety instructions, misuse of intellectual property, or legal, professional, or logistical inability to continue.

If the Company terminates the service without cause attributable to the Client, the Company will refund any prepaid portion corresponding to future services not yet delivered, unless the law provides otherwise.

19. NOTICES, GOVERNING LAW, DISPUTES, AND GENERAL TERMS

Formal notices, including cancellation, freeze requests, payment disputes, and privacy requests, must be sent to cristysim.coaching@gmail.com. WhatsApp and direct messages are operational channels and do not constitute formal notice.

The parties will first attempt a good-faith written resolution and then mediation, conducted remotely or in Travis County, Texas. If the dispute remains unresolved, Texas law and the competent state or federal courts in Travis County, Texas will apply, except where the Client has mandatory, non-waivable rights or forum protections in another jurisdiction.

This Agreement, together with the separate Liability Waiver, is the entire agreement between the parties. Amendments require written or verifiable electronic acceptance. If any provision is unenforceable, it will be limited only as necessary and the remainder will continue in effect. Delay in enforcing a right is not a waiver of that right. Neither party is liable for reasonable delay caused by events beyond its reasonable control.

20. ACCEPTANCE, ACKNOWLEDGMENTS, AND SIGNATURES

By signing below, the Client confirms that the Client:

- Has read and accepts this entire Agreement.
- Accepts the automatic quarterly (three-month) renewal and recurring billing.
- Accepts the 12-hour session cancellation policy.
- Accepts that sessions do not accumulate.
- Accepts the vacation policy under which service may continue online.
- Will separately sign the Informed Consent & Release of Liability as a condition of participation.
- Understands that electronic signatures are valid as originals.

SIGNATURES

Client Name

Client Signature

Date

Coach Name

Cristy Sim

Coach Signature

Date
